

[20 & 21 GEO. 5.] *Wolverhampton* [Ch. cxxxviii.]
Corporation (Trolley Vehicles) Order Confirmation
Act, 1930.



CHAPTER cxxxviii.

An Act to confirm a Provisional Order made by the Minister of Transport under the Wolverhampton Corporation Act 1925 relating to Wolverhampton Corporation trolley vehicles. A.D. 1930.
[1st August 1930.]

WHEREAS under the authority of section twenty of the Wolverhampton Corporation Act 1925 the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed : 15 & 16
Geo. 5.
c. cxxiii.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Wolverhampton Corporation (Trolley Vehicles) Order Confirmation Act 1930. Short title.

[Price 4d. Net.]

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Confirma-
tion of
Order
in schedule.

2. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

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SCHEDULE.

A.D. 1930.

WOLVERHAMPTON CORPORATION (TROLLEY VEHICLES).

Order authorising the mayor aldermen and burgesses of the borough of Wolverhampton to provide maintain and use trolley vehicles upon certain routes in the borough of Wolverhampton and the urban districts of Tettenhall and Wednesfield.

1. This Order may be cited as the Wolverhampton Corporation (Trolley Vehicles) Order 1930. Short title.

2. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely) :— Interpretation.

“ The Corporation ” means the mayor aldermen and burgesses of the borough of Wolverhampton ;

“ The borough ” means the borough of Wolverhampton ;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;

“ The transport undertaking ” means and includes the trolley vehicle and omnibus undertakings of the Corporation ;

“ Trolley vehicle ” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source ;

“ The Act of 1925 ” and “ the Act of 1928 ” mean respectively the Wolverhampton Corporation Act 1925 and the Wolverhampton Corporation Act 1928.

3.—(1) The Corporation may use trolley vehicles upon the following routes (namely) :— Power to use trolley vehicles upon certain routes.

Route No. 1 (2 miles 1 furlong 5·3 chains in length to be situate in the borough and in the urban district of Tettenhall) Commencing at the junction of Worcester Street with Great Brickkiln Street and passing along Great Brickkiln Street Owen Road from its junction with Great Brickkiln Street to its junction with Rayleigh Road Rayleigh Road Jeffcock Road from its junction

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with Rayleigh Road to its junction with Bradmore Road
Bradmore Road Broad Lane and Finchfield Road from
its junction with Broad Lane to and terminating at the
“ New Inn ” Finchfield;

Route No. 2 (2 miles 4 furlongs 8·5 chains in length to be
situate in the borough) Commencing at Prince's Square
and passing along Stafford Street to its junction with
Cannock Road Cannock Road from its junction with
Stafford Street to its junction with Park Lane Park Lane
from its junction with Cannock Road to its junction with
First Avenue First Avenue the westerly side of Showell
Circus and Eleventh Avenue to and terminating at
Bushbury Hill;

Route No. 2A (1 mile 1 furlong 1·7 chains in length to be
situate in the borough and in the urban district of
Wednesfield) Commencing at the junction of Cannock
Road with Park Lane and passing along Cannock Road
to its junction with Victoria Road Victoria Road
Thorneycroft Lane and Prestwood Road to and ter-
minating at the junction of Amos Lane with Prestwood
Road;

Route No. 2B (1 mile 1 furlong 1·7 chains in length to be
situate in the borough and in the urban district of
Wednesfield) Commencing at the junction of Bushbury
Road with Victoria Road and passing along Bushbury
Road to its junction with Cannock Road and along
Cannock Road to and terminating at the “ Pear
Tree ” Inn;

Route No. 2c (2 furlongs 0·9 chain in length to be situate in
the borough) Commencing at the junction of Cannock
Road with Victoria Road and passing along Cannock
Road to and terminating at its junction with Bushbury
Road;

Route No. 2D (9 chains in length to be situate in the borough)
Commencing at the junction of First Avenue with
Showell Circus passing along the easterly side of Showell
Circus to and terminating at its junction with Eleventh
Avenue;

Route No. 3 (1 mile 4 furlongs 5·5 chains in length to be
situate in the borough and in the urban district of
Tettenhall) Commencing at the junction of Compton
Road with Chapel Ash and passing along Compton Road
and Bridgnorth Road to and terminating at the “ Swan
Inn ” Compton;

Route No. 4 (1 furlong 5 chains in length to be situate in the
urban district of Wednesfield) Commencing at the

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junction of Lichfield Road with High Street and passing along Lichfield Road to and terminating at its junction with Wood End Road; A.D. 1930.
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Route No. 5 (5 furlongs 1 chain in length to be situate in the borough) Commencing at the junction of Merridale Road with Chapel Ash and passing along Merridale Road to and terminating at its junction with Bradmore Road;

Route No. 5A (6 furlongs 5 chains in length to be situate in the borough) Commencing at the junction of Trysull Road with Broad Lane and passing along Trysull Road to and terminating at Five Ways Merry Hill;

Route No. 6 (1 mile 1 furlong 7·3 chains in length to be situate in the borough) Commencing at the junction of Vicarage Road with Cleveland Road and passing along Vicarage Road Pond Lane from its junction with Vicarage Road to its junction with Brown Street Brown Street Birmingham Road from its junction with Brown Street to its junction with Thompson Avenue and Thompson Avenue to and terminating at the junction of Thompson Avenue with Parkfield Road;

Route No. 7 (1 furlong 9·3 chains in length to be situate in the borough) Commencing at the junction of Court Road with Newhampton Road and passing along Court Road to and terminating at its junction with Horder Road;

Route No. 8 (5·1 chains in length to be situate in the borough) Commencing at the junction of Hunter Street with Newhampton Road and passing along Hunter Street to and terminating at its junction with Coleman Street;

Route No. 9 (1 furlong 5·4 chains in length to be situate in the borough) Commencing at the junction of Market Street with Bilston Street and passing along Market Street and Princess Street to and terminating at Prince's Square;

Route No. 10 (8 chains in length to be situate in the borough) Commencing at the junction of Bilston Street with Pipers Row and passing along Bilston Street to and terminating at its junction with Market Street;

Route No. 11 (1 mile 1 furlong 5·5 chains in length to be situate in the borough) Commencing at the junction of Coalway Road with Penn Road and passing along Coalway Road to and terminating at its junction with Five Ways Merry Hill.

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(2) The application of the provisions of the Act of 1925 to this Order in accordance with subsection (1) of section 20 of that Act shall have effect with any necessary modification and so far only as the same are applicable for the purpose. Provided that in the application of section 18 (Application of certain tramway and omnibus provisions to trolley vehicles) of the Act of 1925 to this Order section 8 (For protection of Postmaster-General) of the *Wolverhampton Corporation Tramways Order 1902* shall extend and apply subject to the amendment of that section which is enacted by section 9 (Amendment of section 8 of Order of 1902) of the Act of 1928.

(3) The provision maintenance equipment and user of trolley vehicles by the Corporation upon Routes 7 and 8 before the date of this Order and the exercise by the Corporation in relation to these routes before that date of any of the powers of this Order are hereby sanctioned and confirmed.

For protec-
tion of
Tettenhall
urban
district
council.

4. In addition to such of the provisions of section 23 (For protection of urban district council of Tettenhall) of the Act of 1925 as are applicable to this Order the following provisions for the protection and benefit of the urban district council of Tettenhall (in this section called "the council") shall unless otherwise agreed apply and have effect and shall be in addition to and not in derogation of any other provisions of this Order or of any public Act or Acts of Parliament which may exist for the protection or benefit of the council:—

(1) The points at which the trolley vehicles shall turn in the road at the termination of Routes Nos. 1 and 3 in the urban district of Tettenhall shall be reasonably approved by the council:

(2) Before commencing to run trolley vehicles along so much of Route No. 3 authorised by this Order as is situate in the district of the council the Corporation shall in so far as they have power so to do under the provisions of this Order provide and thereafter maintain a shelter for passengers in a situation to be reasonably approved by the council at or near to the termination of that route:

(3) The Corporation shall if so required by the council at any time after commencing to run trolley vehicles along so much of Route No. 1 authorised by this Order as is situate in the district of the council in so far as they have power so to do under the provisions of this Order provide and thereafter maintain a shelter for passengers in a situation to be reasonably approved by the council at or near to the termination of that route:

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- (4) Any difference which arises between the Corporation and the council under the provisions of this section shall be deemed a matter in difference within section 33 of the Tramways Act 1870 and the provisions as to arbitration of that section shall apply accordingly. A.D. 1930. —

5. Notwithstanding anything contained in this Order or in the provisions applied by section 20 of the Act of 1925 (in this section referred to as "the applied provisions") the following provisions for the protection of the Company of Proprietors of the Staffordshire and Worcestershire Canal Navigations (in this section referred to as "the canal company") shall unless otherwise agreed in writing between the Corporation and the canal company have effect:—

For protection of Staffordshire and Worcestershire Canal Navigations.

- (1) All standards brackets conductors mains cables wires posts poles and other apparatus and equipment authorised by this Order or the applied provisions to be placed erected and maintained by the Corporation (all of which are in this section referred to as "trolley vehicle equipment") where the same shall be made upon across under or over any bridge or the approaches thereto or other works belonging to or maintainable by the canal company or will otherwise affect the same shall be placed erected and maintained so as not to affect injuriously the structure of any such bridge approaches or other works and according to plans and sections to be previously submitted to and reasonably approved by the canal company. Provided that if the canal company do not within twenty-one days after such submission signify their disapproval of such plans and sections they shall be deemed to have approved thereof. All such works shall be executed according to the plans and sections so approved and under the superintendence (if the same be given) and to the reasonable satisfaction of the canal company:
- (2) The Corporation shall so maintain and use the trolley vehicle equipment authorised by this Order or the applied provisions as not to affect injuriously any such bridge approaches or other work:
- (3) The Corporation shall not in any manner in the execution maintenance repair or user of any of their trolley vehicle equipment obstruct or interfere with the free uninterrupted and safe user of any canal or other works belonging to the canal company or any traffic thereon:
- (4) The Corporation shall be responsible for and make good to the canal company all losses damages and expenses which may be occasioned to the canal company

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or any of their works or property or to the traffic on their canals by or by reason of the execution failure or user of any of the trolley vehicle equipment or by or by reason of any act default or omission of the Corporation or of any person in their employment or of any contractors for the erection of such equipment or any part thereof and the Corporation shall effectually indemnify and hold harmless the canal company from all claims and demands upon or against them by reason of such execution failure or user or of any such act default or omission :

- (5) If the canal company shall hereafter in the exercise of their existing powers require to widen lengthen strengthen reconstruct alter or repair any such bridge under along or over which the trolley vehicle equipment is laid or the approaches thereto or to widen or alter any canal thereunder or thereover the Corporation shall afford to the canal company all reasonable and proper facilities for the purpose and if it shall be reasonably necessary for such purpose that such equipment be temporarily taken up diverted or removed and if the canal company accordingly give to the Corporation twenty-one days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the said equipment shall be stopped or delayed or such part of the equipment shall be taken up diverted or removed as reasonably required in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the trolley vehicle equipment shall at the like expense be restored with all practicable dispatch and the canal company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :
- (6) The Corporation shall from time to time pay to the canal company any additional expense in connection with the reconstruction widening alteration maintenance or repair (under their existing powers) of any of the bridges of the canal company reasonably incurred by the canal company and necessitated by the existence under along or over any such bridge of trolley vehicle equipment :
- (7) If and when the canal company shall require to reconstruct alter repair or paint any bridge under along or

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over which any trolley vehicle equipment of the Corporation has been placed the Corporation shall if it be reasonably necessary in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting either cut off the electric current from the trolley vehicle equipment under along or over such bridge at such time or shall adopt such other means of protection to workmen as shall be agreed between the Corporation and the engineer of the canal company or failing agreement determined by arbitration under this section :

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- (8) The Corporation shall not for the purposes of this Order make attachments to any part of the said bridges or works of the canal company without the consent in writing of the engineer of the canal company (which consent shall not be unreasonably withheld) or except on such terms as the said engineer may reasonably impose and such attachments shall be temporarily removed at any time when reasonably required by him in connection with the maintenance and reconstruction or alteration (within their existing powers) of the said bridges or works :
- (9) If any difference arises under this section between the Corporation and the canal company the same shall be settled by arbitration and the arbitrator shall be an engineer to be appointed by the Minister of Transport at the request of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

6. Notwithstanding anything contained in this Order the following provisions for the protection of the Great Western Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say) :—

For protection of Great Western Railway Company.

- (1) Before commencing to use trolley vehicles across the bridge which carries Cannock Road over the railway of the company the Corporation shall give notice in writing to the company of their intention so to do and the Corporation shall not use trolley vehicles across the said bridge until such bridge has been reconstructed of sufficient strength to carry such trolley vehicles either to the reasonable approval of the company or under the provisions of the Bridges Act 1929 :
- (2) Unless the said bridge has been previously reconstructed under the provisions of the Bridges Act 1929 the company shall upon receipt of such notice from the Corporation thereupon reconstruct the said bridge so as to be

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of sufficient strength to carry trolley vehicles in accordance with plans and sections to be agreed between the Corporation and the company or in default of agreement to be settled by arbitration as hereinafter provided and on completion of the said works by the company the Corporation shall repay to the company a sum representing the reasonable cost thereof and the capitalised cost of the maintenance and renewal of the bridge as reconstructed less a sum representing the capitalised cost of the maintenance and renewal of the existing bridge :

- (3) Any difference between the Corporation and the company hereunder shall be referred to and determined by an ~~arbitrator to be appointed (failing agreement) at the~~ request of either of the parties after giving notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

Power to borrow.

7.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenue of the transport undertaking and the general rate fund and the general rate and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (namely) :—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) The provision of trolley vehicles -	£ 60,000	10 years from the date or dates of borrowing.
(b) The provision of trolley vehicle equipment and the construction of other works necessary for working trolley vehicles along the routes authorised by this Order.	48,000	20 years from the date or dates of borrowing.
(c) The reconstruction of roads on or along which certain of the trolley vehicle routes authorised by this Order are situate.	2,430	30 years from the date or dates of borrowing.
(d) The payment of the costs charges and expenses of this Order.	The sum requisite.	5 years from the passing of this Order.

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(2) (a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of this Order. A.D. 1930
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(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister of Transport and that period shall be the prescribed period for the purposes of this Order and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenue of the transport undertaking and the general rate fund and the general rate.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 94 (Power to include lands &c. in mortgages) or by section 95 (Power to use one form of mortgage for all purposes) of the *Wolverhampton Corporation Act 1899* as amended by the *Act of 1925*.

8. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of money to be borrowed under the powers of this Order for that purpose. Costs of Order.

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